

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



October 1, 2018

Honorable David B. Gelgound
Judge of the Superior Court
County of Los Angeles
900 Third Street
San Fernando, CA 91340

Re: Gomez, Andres
CDC No.: AR5280
Case No.: PA074947-01
Date of Sentence: 09/10/2013

Dear Honorable David B. Gelgound:

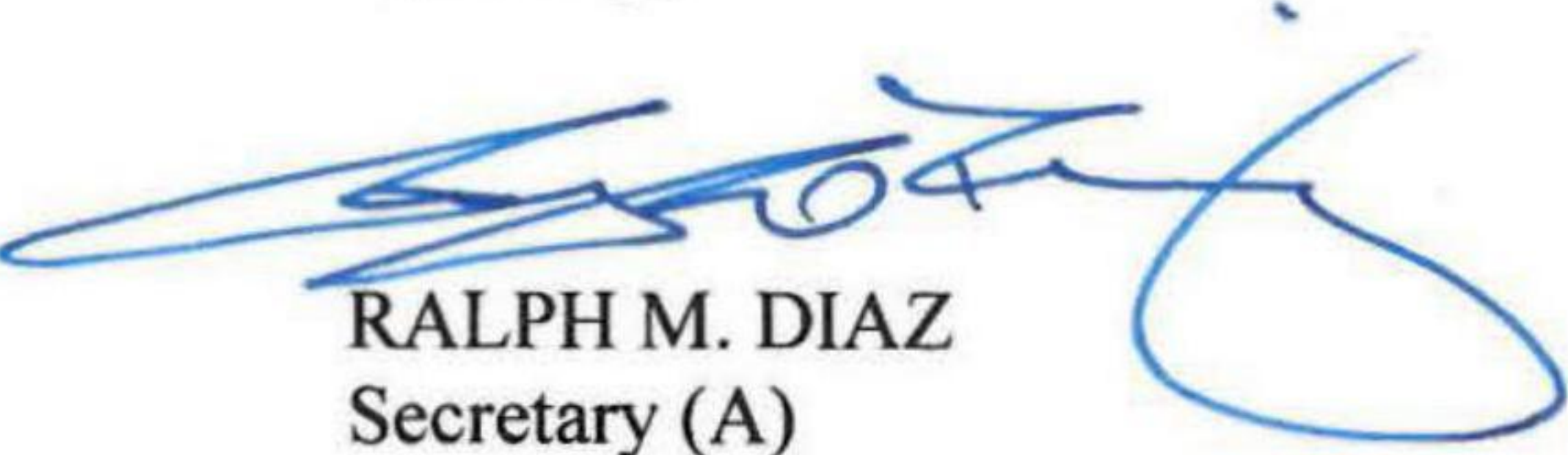
The purpose of this letter is to provide the court with authority to resentence Andres Gomez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Gomez was sentenced in 2013, and was convicted of section 245, subdivision (A)(2), Assault with a Firearm. The trial court sentenced inmate Gomez on 09/10/2013. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Gomez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Gomez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

✓ AR 5280
OK TO GO STWD NOTED
092613

**FELONY ABSTRACT OF JUDGMENT—DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES - NORTHVALLEY DISTRICT				
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: GOMEZ, ANDRES AKA: CII NO.: 030626526 BOOKING NO.: 003342077	DOB: 01-25-1993			CASE NUMBER PA074947-01
☐ NOT PRESENT				
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☐ AMENDED ABSTRACT				
DATE OF HEARING 09-10-2013	DEPT. NO. NVD	JUDGE DAVID B. GELGOUND		
CLERK CRISTINA NANDINO	REPORTER CARYN CONLIN	PROBATION NO. OR PROBATION OFFICER X-2105663 ☐ IMMEDIATE SENTENCING		
COUNSEL FOR PEOPLE TANNAZ MOKAYEF, DA		COUNSEL FOR DEFENDANT DEBORAH CANADA, DPD ☒ APPOINTED		

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L. M. U)	SERIOUS FELONY	VIOLENT FELONY	TIME IMPOSED	
						JURY	COURT	PLEA				YRS.	MOS.
02	PC	245(A)(2)	Assault with a Firearm	2012	09-10-2013			X	L			4	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL
02	186.22(B)(1)(C) PC	10YRS	12022.7(A) PC	3YRS			13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL

4. Defendant sentenced: ☐ to county jail per PC 1170(h)(1) or (2) ☒ per PC 667(b)-(i) or PC 1170.12 (strike prior)
☐ to prison per PC 1170(a) or 1170(h)(3) due to ☐ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement
☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$280.0 per PC 1202.4 (b) forthwith per PC 2085.5 if prison commitment \$280.0 per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4 (f): ☒ \$ ☒ Amount to be determined to ☒ * victim(s) ☐ Restitution Fund
* ☐ Victim name(s), if known, and amount breakdown in item 8, below. * ☐ Victim name(s) in probation officer's report.

Fine(s): \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

☒ Court Operations Assess.: \$ 40.00 per PC 1465.8. ☒ Conviction Assess. 30.00 per GC 70373. ☐ Other: \$ per (specify):

6. TESTING: a. ☒ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify):

7. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post sentence report to CDCR per PC 1203c. Def't's Race / National Origin HIS

8. Other orders (specify):

9. TOTAL TIME IMPOSED: 17 0

10. ☐ MANDATORY SUPERVISION: Execution of a portion of the total jail time imposed in item 9 is suspended and deemed a period of mandatory supervision under PC 1170(h)(5)(B) as follows: Suspended portion: Served forthwith:

11. ☐ This sentence is to run concurrent with (specify): 12. Registration Required: ☐ per (specify code section):

13. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

14. DATE SENTENCE PRONOUNCED 09-10-2013	CREDIT FOR TIME SPENT IN CUSTODY TOTAL DAYS: 374	ACTUAL LOCAL TIME 326	LOCAL CONDUCT CREDITS 048 ☐ 2933 ☐ 2933.1 ☐ 4019	TIME SERVED IN STATE INSTITUTION DMH CDCR CRC [] [] []
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15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ county jail ☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE	DATE 09-19-2013
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This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.